

25STCV29323 25STCV29323

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-22

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Case Number: 25STCV29323 Hearing Date: July 22, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV29323

7-ELEVEN,

INC., A TEXAS CORPORATION vs AIRPORT PLAZA, A CALIFORNIA GENERAL PARTNERSHIP

July

22, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF 7-ELEVEN, INC.'S MOTION TO COMPEL COMPLIANCE WITH DEMAND FOR
INSPECTION AND FOR MONETARY SANCTIONS.

RULING:

The Court grants the
Motion as to Ordering the response and inspection.

The Court denies
Plaintiff's and Defendant's sanctions requests, it finding substantial
justification for some positions of each side.

On or before August 14,
2026, Defendant VASILE PROPERTIES AIRPORT PLAZA, LLC shall serve initial
responses, without waived objections, in full compliance with the California
Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Plaintiff 7-ELEVEN,
INC.'s Demand for Inspection.

Commencing at 7:00 a.m.,
on August 24, 2026, Defendant VASILE PROPERTIES AIRPORT PLAZA, LLC and Plaintiff
7-ELEVEN, INC. shall conduct the requested inspection of the subject sewer line.

Plaintiff to give notice.

I.
BACKGROUND

On October 7, 2025, 7-ELEVEN,
INC. (Plaintiff) filed a Complaint against VASILE PROPERTIES AIRPORT PLAZA, LLC
(Defendant or VPAP).

On March 18, 2026,
Plaintiff filed the First Amended Complaint (FAC), listing Causes of Action
for:

(1)
DECLARATORY RELIEF

(2)
BREACH OF CONTRACT

(3)
BREACH OF THE COVENANT OF GOOD FAITH AND FAIR DEALING.

(4)

UNJUST ENRICHMENT.

Plaintiff alleges that a commercial lease with Plaintiff requires Defendant, the landlord, to maintain common areas, but a corroded sewer line has been causing plumbing problems, thereby precluding Defendant from having reasonable use or enjoyment of the premises, including because of lacking a functioning restroom.

On June 23, 2026, Plaintiff filed the Motion to Compel Compliance with Plaintiff's Demand for Inspection and for Monetary Sanctions.

Defendant opposes in part, and advocates a proposed Order, received on July 9, 2026, partly granting the Motion, which Order contains many provisions appearing to be a thinly disguised Protective Order, as follows:

5.

Defendant Vasile Properties Airport Plaza, LLC shall permit a non-destructive plumbing inspection of the property under the following protocol:

a.

The inspection shall be non-destructive.

b.

The inspection shall occur on a mutually agreeable date and time, with at least five court days' advance notice to allow Defendant to coordinate access and personnel.

c.

The inspection shall not exceed four hours absent further written agreement of the parties or further order of the Court.

d.

Attendees for Plaintiff shall be limited to counsel for Plaintiff, Plumbing Masters personnel reasonably necessary to conduct the inspection, and any other person agreed to by Defendant in advance or authorized by further order of the Court.

e.

Attendees for Defendant may include Defendant's counsel, a property-management representative, and any person reasonably necessary to provide access or monitor the inspection.

f.

The inspection shall be limited to non-destructive inspection, observation, photographing, video recording, measurement, and plumbing/sewer-line testing reasonably necessary to trace and inspect the sewer line serving Plaintiff's leased premises.

g.

The inspection may include Plaintiff's leased premises, common areas, and vacant adjacent tenant spaces within the structure identified by Plaintiff, but only to the extent reasonably necessary to trace and inspect the sewer line serving Plaintiff's leased premises.

h.

The inspection shall not include destructive testing, drilling, excavation, cutting, opening walls, opening floors, opening ceilings, removal of fixtures, or any sampling or activity that alters or damages the property absent further written agreement of the parties or further order of the Court.

i.

The inspection shall not include review, photography, copying, or recording of tenant files, business records, confidential materials, personal property unrelated to the plumbing/sewer-line issue, or areas unrelated to the sewer-line inspection.

j.

Plaintiff's representatives shall take reasonable steps to avoid disruption to the property and shall leave all inspected areas in the same condition in which they were found, except for ordinary movement reasonably necessary for non-destructive access.

k.

If a dispute arises during the inspection regarding scope, access, or method, the parties shall meet and confer in good faith before seeking further relief from the Court.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., § 2031.300 [compelling inspection demand].) A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

“If the party seeking a monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.) Courts may determine substantial justification based on the “whole picture” of the discovery dispute, including where parties partially prevailed as to some discovery items in dispute, or where discovery concessions occurred only after improperly asserted objections. (In re Marriage of Moore (2024) 102 Cal.App.5th 1275, 1297.)

III.

ANALYSIS

Plaintiff states that

Defendant never served a discovery response to the subject demand such that objections are statutorily deemed waived, has not proposed an inspection date, and now improperly advocates a protective order in opposition. Plaintiff adds that an objection to destructive testing is unjustified where Plaintiff’s demand only sought a non-destructive inspection.

Defendant requests an

Order rejecting Plaintiff’s requested relief as being overbroad, monetary sanctions, unilateral-inspection control, and untethered access and destructive testing. Defendant also reports that, on April 21, 2026, Plaintiff’s plumbing consultant arrived late after the noticed start time for the inspection. And Defendant explains that the parties’ meeting and conferring entailed disputes about coordination, timing, attendees, duration, scope, access to external spaces, and appropriate on-site personnel. Further, Defendant objects to monetary

sanctions based upon several arguments, including insufficient evidentiary support and merely estimated future reply expense.

Parties may demand, “[i]nspections of documents, things, and places.” (Civ. Proc. Code § 2019.010, subd. (c).) The response is due within 30 days after the demand is served. (Code Civ. Proc., § 2031.260, subd. (a).) Parties failing to serve timely responses to discovery requests waive any objections thereto. (Pelton v. Delta Packaging Prods. (2008) 165 Cal.App.4th 1658, 1577, fn.13; Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

Also, a noticed motion is required to request a protective order. (Titmas v. Superior Court (2001) 87 Cal.App.4th 738, 743; St. Paul Fire & Marine Ins. Co. v. Superior Court (1984) 156 Cal.App.3d 82, 85.)

Here, the Court finds that Plaintiff satisfactorily evidenced Defendant’s failure to serve a timely response to the subject inspection request and to propose a mutually agreeable time for the inspection.

Further, Defendant is not authorized in the Opposition to insist upon conditions of a protective order for compelling the inspection, especially after causing a statutory waiver of discovery objections by never serving any timely response.

The Court further finds mutual substantial justification in denying both sanctions requests. For instance, Plaintiff’s first inspection attempt ran late through no fault of Defendant. (E.g., Reply, 9:3-5.) And Defendant nonsensically advocates a condition of an Order precluding destructive testing that the Plaintiff’s inspection demand expressly has not requested. Furthermore, discovery motions, such as for compelling depositions, frequently involve attorneys’ inability to simply arrive at a mutually agreeable time, typically leaving it up to a judge to order a mandated time.

IV.

CONCLUSION

The Court grants the Motion

as specified herein and denies both sanctions requests.

Further, the Court gives

advance notice that if the parties are unsuccessful in accomplishing the ordered plumbing inspection, the Court may consider appointing a Discovery Referee, at the equal expense of each party, to attend any future inspection and to supervise and direct it. (E.g., Code Civ. Proc., § 639.)

Finally, the Court

observes that Motions to Compel Inspection Compliance, as to places and tangible things, appear to be exceedingly rare in this Court and around the state, as is evident by a dearth of California judicial opinions on the subject. Additionally, it appears that counsel are extra contentious in this case, as to a matter that should be readily resolved.